

GZ: 2020-0.714.215 dated November 5, 2020 (Case Number: DSB-D124.1749)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent as a public law entity has not been pseudonymized, as its legally defined tasks in labor market policy are mentioned in the text of the reasoning, and therefore a meaningful and context-preserving pseudonymization of the name in this decision to be published in accordance with § 23 para. 2 DSG was not possible.]

DECISION SPRUCH

The
Data Protection Authority
decides
on
the
data protection complaint
of

Heinrich A***

(complainant) dated February 17, 2020 against the AMS Austria (respondent) regarding
a violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 4 No. 15, Art. 9 para. 1 and para. 2, Art. 51 para. 1, Art. 57 para. 1 lit. f and para. 4
as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation,
hereinafter:

GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1 as well as 24 para. 1
and para. 5

of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 1 para. 1 and
para. 2, 25 para. 1 of

the Federal Act on the Labor Market Service (AMSG), Federal Law Gazette No. 313/1994 as
amended; § 54 of the

Unemployment Insurance Act 1977 (AIVG), Federal Law Gazette No. 609/1977 as amended; §§ 2 and
3 para. 2 of the AIVG

Payment Regulation (AZV), Federal Law Gazette II No. 470/1999 as amended as well as §§ 2 para. 3
and para. 9 of

the Federal Act on the Federal Computing Center GmbH (BRZ GmbH), Federal Law Gazette No.
757/1996 as amended by Federal Law Gazette I

No. 82/1997 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In the complaint dated February 17, 2020, the complainant summarized that the
respondent, in the context of fulfilling its statutory duties under the AIVG, disclosed the complainant's
social security number to the F***

Savings Bank, which processes benefits from unemployment insurance on behalf of the respondent
and handles the

booking of resulting monetary amounts, without the complainant's consent. This constitutes an
unlawful disclosure of special categories of data, namely a health datum, pursuant to Art. 9 GDPR.

Due to the nature or purpose of the social security number, it cannot be excluded that, in the event of
an unlawful disclosure to third parties, those third parties could gain access to health data of the
affected person using the social security number.

2. In a statement dated March 19, 2020, the respondent replied and requested that the

complaint be dismissed as unfounded. Essentially, the respondent countered that the complainant had not named any specific individuals who had obtained knowledge of his social security number.

Due to the fully automated transactions of accounts in today's economic dealings, thousands of transfers and

bookings are carried out fully automatically every day, it seems that the participation of bank employees in the payout process, as assumed by the complainant, does not occur. Furthermore, the field containing the social security number does not typically appear in general booking views, which only display booking amounts and the corresponding booking times, but only in detailed views of bookings. Without naming specific bank employees who would have been made aware of the social security number, the complaint should therefore be dismissed, as no actual legal violation has occurred.

Moreover, the sharing of the social security number with the involved parties regarding the complete and proper processing of the procedure for statutory service provision (§§ 7 para. 1 et seq., 51 AIVG in conjunction with Art. 6 No. 1 lit. c GDPR in conjunction with § 25 para. 1 No. 1 lit. b [sic!]), among others with the Federal Ministry of Finance and the Federal Accounting Agency, was coordinated. In this context, not only the actual service provision but also all necessary activities and associated processing operations, which provide the necessary data basis for subsequent control and verification procedures or are created for those cases when the planned regular outcome of the procedure does not occur or occurs in a significantly different form, are involved. Regarding transfers of a monetary amount to benefit recipients, this is regularly the case, i.e., that the monetary amount is not transferred without issues, which in turn leads to a benefit reversal procedure, in the course of which not only the AMS requires the transmitted social security number for identification and maintenance of the data record, but particularly also the Federal Accounting Agency for the accounting work in the course of the reversal. In this context, the respondent notes that he himself can only fill out a payment order from the Federal Ministry of Finance and subsequently has no influence on the actual implementation processes.

Finally, there is also no processing of special categories of data, specifically a health datum in the sense of Art. 9 GDPR. This must be viewed differently for the date of the social security number. In the present case, the social security number would be processed in a non-health-related manner.

3. The complainant did not respond to the opportunity to be heard granted to him on April 6, 2020.

4. By letter dated August 26, 2020 (received by the Data Protection Authority on August 28, 2020), the complainant filed a complaint for delay pursuant to Art. 132 para. 3 B-VG in conjunction with §§ 7 et seq. VwGVG.

B. Subject of the Complaint

Based on the submissions of the complainant, it follows that the subject of the complaint is the question of whether the respondent has violated the complainant's right to confidentiality by disclosing the complainant's social security number to the complainant's bank, B*** Bank AG, during the statutory provision of services (transfer of a monetary benefit).

C. Findings of Fact

The respondent is a public law service company responsible for implementing labor market policy. In the course of the statutory provision of services under the Unemployment Insurance Act, the respondent transmitted to the bank where the complainant—at that time a recipient of benefits from the respondent—holds his account, namely B*** Bank AG, among other things, the complainant's social security number, which was entered in the transfer field "Booking Info" alongside information regarding the benefit period:

[Note from the editor: The account statement or telebanking screenshot presented here as a graphic file cannot be easily displayed and anonymized in the RIS and has therefore been removed.]

The complainant did not consent to such transmission of his social security number.

Assessment of Evidence: The findings made are based on the submissions of the parties to the proceedings as well as the contents of the files.

D. From a legal perspective, it follows:

1. General and Relevant Legal Provisions

It should be noted at the outset that in this case, a violation of the right to confidentiality under § 1 para. 1 DSG is to be examined, and that restrictions on this claim arise from para. 2 of the same law, but not from Art. 6 para. 1 or Art. 9 para. 2 GDPR. However, the GDPR and, in particular, the principles enshrined therein must be taken into account when interpreting the right to confidentiality (cf. the decision of the DSB dated October 31, 2018, GZ: DSB-D123.076/0003-DSB/2018).

According to § 1 para. 1 DSG, everyone, particularly with regard to the respect for their private and family life, has the right to confidentiality of their personal data, provided there is a legitimate interest in doing so.

According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the affected person or with their consent, are only permissible to safeguard overriding legitimate interests of another party, and in the case of interventions by a state authority, only on the basis of laws. Such laws may only provide for the use of data that is particularly worthy of protection in its nature to safeguard important public interests and must simultaneously establish adequate guarantees for the protection of the confidentiality interests of the affected parties. Even in the case of permissible restrictions, the intervention in the fundamental right must always be carried out in the least intrusive manner necessary to achieve the objective. The implementation of federal labor market policy is the responsibility of the "Public Employment Service" according to § 1 para. 1 AMSG. This is a public law service company with its own legal personality.

According to § 54 AIVG in conjunction with §§ 2, 3 para. 2 of the AIVG Payment Regulation, the instruction of benefits under the AIVG is the responsibility of the locally competent regional office of the Public Employment Service.

The involvement in the payment provision is, according to § 2 para. 3 of the Federal Act on the Federal Computing Center GmbH, the responsibility of the Federal Computing Center GmbH. This is bound by the instructions of the respective client when using data as a service provider according to para. 9 of the same law.

According to § 25 para. 1 AMSG, the Public Employment Service is authorized to process personal data to the extent that this is a significant prerequisite for fulfilling its statutory tasks. The relevant types of data include, according to item 1 lit. b of the same law, among others, social security number and date of birth. The data processed by the Public Employment Service may, according to para. 4 of the same law, be transmitted to the Federal Computing Center GmbH within the framework of the services to be provided by them.

According to Art. 9 para. 1 GDPR, the processing of health data is prohibited unless an exception under para. 2 of the same law applies. According to Art. 4 item 15 GDPR, health data are personal data related to the physical or mental health of a natural person, including the provision of health services, from which information about their health status can be derived.

2. On the Merits

a. Regarding the Distribution of Roles in Data Protection Law

As can be seen from the findings, the respondent is, according to § 1 para. 1 AMSG, a public law service company for the implementation of the

Federal Labor Market Policy. Despite the organizational structure into federal, state, and regional organizations, the sub-organizations of the respondent do not possess their own legal personality, which is why the status of data protection controller belongs solely to the respondent and not to its sub-organizations (cf. Jahnel, Handbook on Data Protection Law Rz. 3/33).

Thus, the respondent was to be qualified as a public authority within the meaning of § 1 para. 2 DSG. The fact that the Federal Computing Center GmbH was involved in the processing of the payment is irrelevant for the qualification of the respondent as a data protection controller, especially since it is bound by the instructions of the respondent regarding the processing of personal data (cf. § 2 para. 9 of the Federal Act on the Federal Computing Center GmbH).

Moreover, the data protection responsibility on the part of the respondent was not disputed at any time.

b. On the legality of data processing

It should be noted at the outset that the social security number is a personal data to which, in principle,

a legitimate interest in confidentiality of the complainant exists within the meaning of § 1 para. 1 DSG: it is regularly used as an identifier in business and administrative transactions, and specifically in the context of claiming social security benefits (cf. the decision of the former DSK dated August 3, 2012, GZ: K121.817/0016-DSK/2012).

There is also no merely "abstract risk" as claimed by the respondent. The respondent overlooks that, even if account bookings were to occur regularly in a fully automated manner, the personal data of the complainant were nevertheless disclosed to B*** Bank AG – and thus to a third party.

The qualification of the respondent as an "authority" within the meaning of § 1 para. 2 DSG also requires that interventions in the fundamental right to data protection may only occur on the basis of a sufficiently determined legal basis. The statements of the complainant, that he did not give consent regarding the processing of his data, are therefore irrelevant.

As can be inferred from § 25 para. 1 AMMSG, the respondent is authorized to process the social security number to the extent that it is a significant prerequisite for fulfilling its legal duties.

In this context, the respondent states that the processing of the social security number enables, on the one hand, the proper handling of the payment, and on the other hand, it is also necessary for subsequent control and verification procedures (especially in the case of a benefit return procedure). The processing of payments from unemployment insurance undoubtedly constitutes a legal duty of the respondent. The processing of the social security number for the proper and correct allocation of the benefit to the respective beneficiary does not represent an improper or excessive use of data, as there is undoubtedly a social security-related fact.

As an interim result, it can thus be stated that the use of the social security number in the context of the payment instruction related to a benefit from unemployment insurance is generally to be considered permissible. Subsequently, it must be examined whether the use of the mentioned data was proportionate, as according to § 1 para. 2 DSG, even in the case of permissible restrictions, the intervention in the fundamental right must always be carried out in the least intrusive manner leading to the goal (data minimization obligation).

For the average legal subject, it is certainly understandable that the respondent must necessarily process some of the data types listed in § 25 para. 1 AMMSG in order to provide certain benefits (for example, processing an application for the receipt of certain benefits from unemployment insurance). It is also within common experience that due to the high workload of the respondent, benefit return procedures can indeed occur, in which a clear identification of the beneficiaries – especially for accounting purposes – is necessarily required.

The use of the mentioned data was a significant prerequisite for achieving the intended purpose and thus constitutes a proportionate intervention in the right to confidentiality.

c. On the social security number as health data

Finally, it was necessary to address the claim of the complainant that the social security number constitutes health data within the meaning of Art. 9 para. 1 GDPR.

It should be noted that laws within the meaning of § 1 para. 2 DSG may only provide for the use of data that are particularly worthy of protection by their nature for the safeguarding of important public interests and must simultaneously establish appropriate guarantees for the protection of the confidentiality interests of the affected individuals.

Health data, in light of Art. 9 para. 1 GDPR, undoubtedly constitutes particularly worthy of protection data, whereby the term must be interpreted broadly in accordance with the case law of the CJEU (cf. regarding Art. 8 para. 1 of Directive 95/46 the judgment of the CJEU of November 6, 2003, C-101/01, Case Lindqvist, Rz 50).

According to Art. 4 no. 15 GDPR, in conjunction with Recital 35 second sentence GDPR, health data is also covered.

Numbers, symbols, or identifiers assigned to a natural person to uniquely identify that person for health purposes. However, the Data Protection Authority maintains in its consistent case law that health data must, in any case, reveal information about the past, present, and future physical or mental health status of the affected person. Considering this reasoning, identifiers in the sense of Recital 35, second sentence of the GDPR cannot be classified as health data per se; rather, there must also be a certain connection to information about the health status concerning such identifiers (see, for example, the

decision of the DSB dated April 9, 2019, DSB-D123.526/0001-DSB/2019).

If the social security number is therefore used merely as an indicator—i.e., objectively independent of the utilization of a health service—there is no health data and thus no particularly worthy of protection data in the sense of § 1 Abs. 2 DSG or Art. 9 Abs. 1 GDPR.

It was therefore decided accordingly.